From: Serhan Handani
Sent: Wed, 7 Jun 2023 09:56:29 +0100
To: 'Tim Fogarty';Eleanor Andrews
Subject: RE: 34 Albany Wood - Mr & Mrs Taylor
Categories: LEAP

Dear Tim,

Thank you for your email.

I have taken my clients' instructions. The agreement on the exchange timing and reservation fees are gratefully received, thank you.

My clients believe the purchase is now untenable due to the reduced borrowing capacity and increased monthly payments caused by the interest rate increases.

I am instructed to stress that my clients warned your client of this possibility if your client continued to delay the process. My clients are of the view that your client has caused delay, particularly with regard to the (now agreed) exchange timing, and this has led the difficulties with the mortgage.

I am instructed that my clients cannot proceed with the price as it is and would respectfully request that your clients reconsider the modest reduction in price.

If this is agreed, my clients can reserve the property tomorrow and lock in their interest rate.

My clients are unable to compromise further, and it would be unfortunate for this settlement to fail at the final hurdle.

I would be most grateful if you could take your client's instructions on whether they would reconsider.

Kind regards,

Serhan Handani LL.B (Hons), LL.M
Partner

BRAMSDON & CHILDS
SOLICITORS

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From: Tim Fogarty <tfogarty@wslaw.co.uk>
Sent: Wednesday, June 7, 2023 6:12 AM
To: Serhan Handani <sh@bramsdonandchilds.com>; Eleanor Andrews <eandrews@wslaw.co.uk>
Subject: Re: 34 Albany Wood - Mr & Mrs Taylor

Dear Serhan,

Thank you for your email below and for setting out your client's position so concisely.

On your various points, and using your sub-headings, I can confirm my client's position as follows:-

Exchange

If this is important to your clients, my client is content for contracts for the sale of Plot 34 to be exchanged after the Taylor Rose survey with completion 14 days after exchange.

My client will not, however, agree to three separate surveys but will agree, as previously confirmed, to one jointly instructed survey once the property is build complete.

Price

My client is not willing to change the purchase price that they had agreed with your client, subject to contract, for the new property.

Reservation Fee

In the circumstances my client is content not to require your client to pay the £1,000 reservation fee on reservation.

I will ask my client to update the Reservation Agreement to take account of the above matters and re-issue this to you for approval. As you may be aware the reservation meeting has been booked in for this Thursday so I am keen to ensure the Reservation Agreement is in agreed form by then.

Kind regards

Tim

Tim Fogarty

Partner

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tfogarty@wslaw.co.uk

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From: Serhan Handani <sh@bramsdonandchilds.com>
Sent: Tuesday, June 6, 2023 10:28 am
To: Eleanor Andrews <eandrews@wslaw.co.uk>
Cc: Tim Fogarty <tfogarty@wslaw.co.uk>
Subject: RE: 34 Albany Wood - Mr & Mrs Taylor

⚠ **This message originated outside Winckworth Sherwood and was sent from email address sh@bramsdonandchilds.com**

Good morning Eleanor/Tim,

Thank you, Tim, for our telephone call on Thursday evening.

I met with my client's yesterday. As I am sure you have been informed by your client, the site visit was not overly productive as little progress has been made on the plot.

I shall attempt to simplify the issues at this stage and focus on the main points. I apologise for the length and have utilised headings for ease.

The Exchange

In short, my clients do not wish to exchange contracts until the building has been signed off by Taylor Rose.

Mr Adrian Sims specifically promised this to our client directly when the settlement was being negotiated. I am instructed that his exact words were:

> *"If you were looking to explore [purchasing plot 34] I would say **before you exchange contracts** on that particular plot, so you're then locked into buying it, that you would be, we'd have to come up with a mechanism that you can say that you're happy with the home before that time. So **it'd have to be finished**, obviously and then, you know, you would be absolutely assured for yourselves that that's something you'd like to proceed with."*

This was repeated on Friday by the site team. I believe (although I may be mistaken) that it was the site manager on Friday who suggested that our clients take advantage of surveys during the build process (and a final sign off) before exchange.

We cannot see that this would substantially impact the timetable.

My clients would therefore suggest the property is reserved (with the agreement amended as required) and three surveys take place by Taylor Rose, on a joint instruction basis and at your client's expense. The first two of these inspections would be at sensible points during the build process. I would suggest that Taylor Rose and the site team agree these amongst themselves. The final inspection would be upon your client finishing the property.

We would suggest that a similar mechanism as paragraph 19 of the Reservation Agreement should govern these inspections, with respect to suggested works and Taylor Rose would have the final determination (as currently in the Reservation Agreement).

This approach does not appear to prejudice either party and the process will proceed more akin to a usual house purchase, than a new build. I.e., exchange of contracts would take place once the buyer has had their survey and is satisfied. Completion could then, realistically, occur 2 weeks or so later, to allow for funds to be drawn.

The Price

My clients met with their mortgage broker yesterday and due to the changing rates, their borrowing capacity has been reduced.

Without wishing to be difficult, my clients would request that the purchase price be reduced by £6,000 to facilitate the new lending.

The Reservation Fee

Given the relationship between our respective clients, the reservation fee of £1,000 appears unnecessary. We would respectfully request that this be waived in the circumstances.

Other Matters

We are aware that the sales team emailed you, and other parties at Crest about our clients following the meeting. This has, we are told, been retracted and apologies offered to our clients.

Because this email contained questions and points for my clients, they are answering this email in any case. I trust you will be provided this directly by your client but please let me know if I can assist by obtaining a copy from my clients. My clients wished to ensure that our respective firms were aware of the correspondence.

I look forward to hearing from you.

Kind regards,

Serhan Handani LL.B (Hons), LL.M
Partner

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From: Serhan Handani
Sent: Thursday, June 1, 2023 5:02 PM
To: 'Eleanor Andrews' <eandrews@wslaw.co.uk>
Cc: Tim Fogarty <tfogarty@wslaw.co.uk>
Subject: RE: 34 Albany Wood - Mr & Mrs Taylor

Hi Eleanor,

If you are still in the office, would you be able to call me on 07540471816?

Kind regards,

Serhan Handani LL.B (Hons), LL.M
Partner

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From: Eleanor Andrews <eandrews@wslaw.co.uk>
Sent: Thursday, June 1, 2023 2:28 PM
To: Serhan Handani <sh@bramsdonandchilds.com>
Cc: Tim Fogarty <tfogarty@wslaw.co.uk>
Subject: FW: 34 Albany Wood - Mr & Mrs Taylor

Dear Serhan,

Further to our email exchange below, I'd be grateful if you could confirm whether you have any comments on the reservation agreement.

My client has been contacted directly by your clients with some comments on the reservation agreement. To assist, I thought it best to set out my client's position below:

The reservation agreement needs to be agreed before your client can arrange the formal reservation meeting with our client given that the reservation agreement will be signed at that meeting;

This said, my client certainly shares your clients' wish to progress this matter promptly. To that end, my client suggests that your clients come to the site at a convenient time tomorrow to review the plot again and discuss any immediate issues with respect to the plot or the plans. This will enable any issues to be considered by my client ahead of the reservation meeting. This will also give you sufficient time to provide advice to your client on the reservation agreement itself. All being well, this should allow the formal reservation meeting (and signing of the reservation agreement) to take place on say, Thursday next week.

Your clients have asked for their email addresses to be corrected in the reservation agreement and to insert the anticipated completion date of September/October 2023. These changes have been made and are included within the updated reservation agreement attached. These are, however, matters of factual detail and do not alter the substance of the remainder of the document previously provided.

As set out in my client's email to yours dated 29 March 2023 at 18:11 our client confirmed that they would meet the costs of the survey requested by your client but that Trinity Rose would need to be jointly instructed;

For the benefit of both parties, the basis upon which my client will proceed will be for contracts to be exchanged on both the buyback and the proposed purchase of 34 Albany Wood. As regards the latter, the contract would make clear the arrangements in relation to the joint survey (to take place prior to completion) and your clients would have the comfort of the contractual commitment on my client's part to undertake and complete any reasonably and properly required works to ensure compliance with NHBC technical standards and building regulations that Trinity Rose say should be carried out.

My client is content to meet your firm's reasonable costs up to £350 plus VAT for your review of the draft reservation agreement.

I am generally around all afternoon if it would be helpful to discuss by phone at all.

I look forward to hearing from you.

Kind regards,

Elly

Elly Andrews
Associate

Winckworth Sherwood

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M : +44 (0) 77 7359 5357

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From: Serhan Handani <sh@bramsdonandchilds.com>
Sent: 26 May 2023 12:25
To: Eleanor Andrews <eandrews@wslaw.co.uk>
Subject: RE: 34 Albany Wood - Mr & Mrs Taylor

This message originated outside Winckworth Sherwood and was sent from email address sh@bramsdonandchilds.com

Thank you, I shall forward to my client.

Kind regards,

Serhan Handani LL.B (Hons), LL.M
Partner

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From: Eleanor Andrews <eandrews@wslaw.co.uk>
Sent: Friday, May 26, 2023 12:21 PM
To: Serhan Handani <sh@bramsdonandchilds.com>
Cc: Tim Fogarty <tfogarty@wslaw.co.uk>
Subject: 34 Albany Wood - Mr & Mrs Taylor

Dear Serhan,

Further to our recent correspondence on this matter, please find attached a copy of the draft reservation form for 34 Albany Wood. The key provisions around the structural survey are set out at paragraph 19 of the Conditions on page 5.

Kind regards,

Elly

Elly Andrews
Associate

Winckworth Sherwood

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